

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

FORMUKLEEN, INC., *Complainant*

v.

TOP SHIPPING SYSTEMS, CORP., *Respondent*.

DOCKET NO. 25-08

Served: February 18, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER DENYING COMPLAINANT’S MOTION TO COMPEL RESPONDENT DISCOVERY

On February 17, 2026, Complainant filed Complainant’s Motion to Compel Respondent Discovery (“MTC”). The MTC contains a certification of efforts to resolve discovery without Commission intervention, a complete copy of the discovery requests that Complainant propounded on Respondent, email correspondence between the parties’ representatives, and Complainant’s description of Respondent’s discovery responses. (*See* MTC, at Exs. A & B).

Commission Rule 210(a)(2) provides that a motion to compel “must include: . . . If a disclosure has been made or an answer or response has been given, a copy of the disclosure, answer, or response in its entirety[.]” (46 C.F.R. § 502.150(a)(2)(iii)). In addition, “If the motion is limited to specific discovery requests, only those requests are to be included[.]” (46 C.F.R. § 502.150(a)(2)(iii)).

While the MTC includes Complainant’s description of Respondent’s allegedly deficient discovery responses, the MTC does not contain a “copy” of the actual disclosure, answer or response. Further, the MTC contains a copy of all of Complainant’s discovery requests. (*See* MTC, Ex. A). It appears from the MTC and Ex. B that Complainant makes no arguments regarding Interrogatories or Requests for Admission. (*See generally* MTC). In other words, the motion to compel should include a recitation of each discovery request at issue, along with the response provided by the responding party, and the moving party’s argument regarding why the response is deficient. Including every request for production, request for admission, or interrogatory propounded makes the motion to compel non-compliant with Commission Rule 210(a)(2).

Accordingly, because the MTC does not comply with Commission Rule 210(a)(2), the MTC is **DENIED WITHOUT PREJUDICE**.

Before Complainant files a corrected motion to compel, the parties are strongly encouraged to refocus their discovery efforts. A critical issue in this case is whether Respondent was acting as an NVOCC in relation to the two shipments at issue. (*See* Order Denying Motion for Summary Judgment, at 7-8). Complainant may, therefore, take reasonable discovery related to whether Respondent was acting as an NVOCC in relation to the shipments at issue. In addition, Complainant may take reasonable discovery related to the issue of reparations. (*Id.*, at 8, n. 2). Complainant may also take reasonable discovery related to the other elements of its claims. In light of this reminder, the parties should reasonably re-assess whether the pending disputes may be resolved, or at least narrowed. The parties should not take these remarks as a statement on the merits of the discovery dispute. Instead, the parties should understand these remarks as a reminder of the key issues here, and to focus on those.

Richard C.

Ambrow Jr -S

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Richard Ambrow
Administrative Law Judge